

25VECV03155 25VECV03155

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-19

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Case Number: 25VECV03155 Hearing Date: August 19, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MICHELE ORDAZ, an
individual,

Plaintiff,

vs.

PANINI KABOB GRILL, a California
Corporation; and DOES 1 to 50,

Defendant.

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CASE NO.: 25VECV03155

ORDER

GRANTING PLAINTIFF'S MOTION TO QUASH DEFENDANT'S SUBPOENA FOR PLAINTIFF'S
EMPLOYMENT RECORDS

I.

BACKGROUND

Plaintiff Michele Ordaz

("Plaintiff") brings this personal injury action against Defendant Panini Kabob Grill ("Defendant"). Plaintiff alleges she slipped and fell on stairs due to inadequate and poorly visible signs warning of the stairs' slippery condition.

Plaintiff now moves to

quash Defendant's deposition subpoena to non-party Leichter Leichter-Naroko LLP; Human Resources.

II.

PROCEDURAL

HISTORY

On June 6,
2025, Plaintiff filed a Complaint alleging premises liability.

On July 23,
2025, Defendant filed an Answer.

On July 24,
2026, Plaintiff filed the instant Motion.

On August 4,
2026, Defendant filed an Opposition.

On August 12,
2026, Plaintiff filed a Reply.

III.

LEGAL STANDARD

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court... the court, upon motion reasonably made by any person described in subdivision (b) [a party or employee described in Section 1985.6]...may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc. § 1987.1(a).) [1]

IV.

ANALYSIS

Plaintiff

seeks to quash the deposition subpoena issued to her employer, Leichter Leichteraroko LLP; Human Resources. Plaintiff contends Defendant's subpoena is overbroad as it requests “any and all...wage, attendance records, payroll records, salary records, benefit records, applications, claims for Workers' Compensation of any kind, timesheets, vacation records, sick leave records, medical and personnel records.” (Mot. at 8:7-10.) Plaintiff contends if Defendant wishes to obtain Plaintiff's medical records it can subpoena them from Plaintiff's medical providers. (See *id.*, at 6:7-8; Sep. Stmt at 3:1-2.) Plaintiff asserts her privacy right to the records sought. Plaintiff cites *Davis v. Superior Court* (1992) 7 Cal. App. 4th 1009, 1017 for the proposition that direct relevance must be shown when a privacy right is implicated. (See Mot., at 8:21-25; Sep. Stmt. at 3:16-19.)

In

opposition, Defendant argues the Motion is untimely pursuant to 1985.3(g) because Plaintiff's Motion was served on July 24, 2026, and the production date is June 30, 2026. (See Opp. at 2:24-26.) Next, Defendant contends Plaintiff's employment records for time off work for treatment, sick days due to pain, prior accommodations following Plaintiff's prior motor vehicle collision, and accommodations following the incident in this matter are relevant to causation in this action. (See Opp. at 2:17-20, 3:13-16.) Defendant argues Plaintiff has waived their privacy right by putting at issue her physical injuries. (See Opp. at 4:27-5:12.)

Plaintiff

argues § 1985.3(g) does not state a court loses jurisdiction to consider a motion to quash filed after the production date. (See Reply at 2:9-12.) Plaintiff reasserts the subpoena is overbroad given she is not seeking damages for lost earnings. (See id., at 3:28-4:4.)

Plaintiff did

not timely comply with the notice requirements of Code of Civil Procedure § 1985.6(f)(1). A party consumer or any employee may bring a motion to quash a subpoena that seeks either consumer or employment records before or after the date set for production. (See Code Civ. Proc., §§ 1985.3(g), 1985.4, 1985.6(f)(1); see *Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1312 [nothing in § 1985.3 requires party consumer to bring motion before compliance date because statute is simply designed to guide those involved on when custodian can safely honor subpoena].) However, the movant must give notice "of the bringing" of a motion to quash to the witness and deposition officer at least five days before the production date set in the subpoena. (See Code Civ. Proc., §§ 1985.3(g) [motion by party consumer], 1985.4 [procedures of § 1985.3 apply to governmental records], 1985.6(f)(1) [motion by employee].) Further, the movant must file and serve the motion at least 16 court days before the date set for the hearing and must comply with the additional deadlines for discovery as applicable.

Though

Plaintiff argues she is a party who is a consumer bringing this Motion pursuant to § 1985.3(g), that section is not applicable here. Plaintiff is not a consumer within the meaning of § 1985.3(a)(2)[2]. Instead,

Plaintiff is an employee within the meaning of § 1985.6. Here, the Court notes Plaintiff served her subpoena objection on the witness on June 17, 2026. (See Declaration of Benjamin G. Berkley filed July 24, 2026 (“Berkley Decl.”), ¶ 5, Ex. 2.) However, the Notice of Motion was served only on Defendant on July 24, 2026. (See POS.)

Notice to the

witness of the employee’s motion to quash relieves the witness from having to produce the records until the witness receives either a court order requiring production or an agreement on production from all affected parties, witnesses, and employees. (See Code Civ. Proc. § 1985.6(f)(3).) Given Plaintiff served an objection to the witness-employer and the Motion is disputed past the date of production, the Court infers the witness has not yet produced the records despite non-receipt of the Notice. The Court is also unaware of authority providing a motion to quash is invalid if the notice is not timely served on the witness. Thus, the Court will turn to the merits of Plaintiff’s privacy assertion.

Williams v.

Superior Court (2017) 3 Cal.5th 531, 541, and Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35, describe the applicable test when limiting discovery based on privacy interests. The three-pronged Hill test, applied to discovery disputes via Williams, proceeds as follows:

The party asserting a privacy right must establish [1] a legally protected privacy interest, [2] an objectively reasonable expectation of privacy in the given circumstances, and [3] a threatened intrusion that is serious. ([Hill,] at pp. 35–37) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (Id. at pp. 37–40)

(Williams,
3 Cal.5th at 552.)

Plaintiff has

the burden to satisfy the three prongs of Hill “and against that showing must weigh the countervailing interests the opposing party identifies, as Hill requires.” (See *id.*, at 557.)

Here, the subpoena seeks “Any and all records pertaining to the employment of above named individual, said records to include, but are not limited to wage, attendance, any payroll records, salary, benefits, applications, claims for Workers’ Compensation of any kind, timesheets, vacation, sick leave, medical and personnel file records.” (See Berkley Decl., ¶ 4, Ex. 1.)

Plaintiff

sufficiently establishes she has a legally protected and reasonable expectation of privacy in her employment records. “[P]ersonnel records and employment history are within the scope of the protection provided by the state and federal Constitutions.” (San Diego Trolley, Inc. v. Superior Court (2001) 87 Cal.App.4th 1083, 1097 overruled on other grounds; Board of Trustees v. Superior Court (1981) 119 Cal.App.3d 516, 530.) Plaintiff shows the scope of the subpoena is overbroad and reaches financial and medical information contained in her employment records which are irrelevant to this action. Plaintiff contends she is not making past or future claims for loss of earnings or any claim for loss of earning capacity. Thus, Plaintiff shows the scope of the subpoena imposes a substantial invasion of her privacy interest.

The Court

agrees Defendant has a strong countervailing interest in obtaining evidence of Plaintiff’s prior injuries to the extent they overlap with alleged injuries in this action. Defendant’s subpoena to Plaintiff’s employer must specify the category of relevant employment records it seeks with respect to specified dates or concerns of the same injury at issue in this action. However, the subpoena here is overbroad and unnecessarily invasive as it requests irrelevant categories of documents including timesheets, vacation, and payroll records. Defendant’s request for all employment records is not narrowly circumscribed to the records Defendant claims are relevant. (See Opp. at 2:17-21; see *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014.)

Defendant’s Opposition

offers little in the way of case specific analysis that would enable the Court to conclude material responsive to the subpoena at issue provide additional insight into Plaintiff’s injuries that her medical records would not already provide

and thus warrant the invasion into her privacy interest. In addition, Defendant offers no limiting alternative that would achieve their stated goals with the subpoena. As a result of both of these shortcomings, the Court is unable to narrow the scope of the subpoena in a satisfactory manner.

Accordingly,
the Court GRANTS Plaintiff's Motion to Quash.

V.
DISCOVERY SANCTIONS

"Except as specified in subdivision (c), in making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc. § 1987.2(a).)

"The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct...If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Id., § 2023.030(a).) Misuse of the discovery process includes "[p]ersisting, over objection and without substantial justification, in an attempt to obtain information or materials that are outside the scope of permissible discovery." (Id., § 2023.010(a).)

Plaintiff requests \$2,560.00 in discovery sanctions comprising 3 hours to prepare the Motion, 1 hour to prepare the Reply, and 1 hour to attend the hearing, plus a \$60.00 filing fee. (See Berkley Decl., ¶¶ 7, 9-10.) Plaintiff's counsel's hourly rate is \$500.00.

Defendant

contends there is substantial justification for its position regarding the subpoena such that the Court may decline Plaintiff's request for sanctions.

Although the

Court has granted the motion and disagrees with Defendant's position, the Court finds Defendant was substantially justified in opposing the motion.

Accordingly, the Court denies Plaintiff's request for sanctions.

VI.

CONCLUSION

Based on the

foregoing, the Court GRANTS Plaintiff's Motion to Quash.

IT

IS SO ORDERED.

DATED: August 19, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.

[2] "Consumer" means any

individual, partnership of five or fewer persons, association, or trust which has transacted business with, or has used the services of, the witness or for whom the witness has acted as agent or fiduciary." (Id., § 1985.3(a)(2).)